

DISSENTING OPINION BY COUNT ROSTWOROWSKI.

[*Translation.*]

Being unable to concur in the conclusions of the Advisory Opinion, I feel obliged to exercise my right under Article 57 of the Statute to append to the Opinion of the Court a statement of my separate opinion.

The Court has had before it the request of the Council of the League of Nations at the very moment when the latter is about to undertake the final settlement of the question of access to and anchorage in the port of Danzig for Polish war vessels; accordingly, I venture to draw attention to certain important points which emerge from the actual wording of the question submitted to the Court.

This question is formulated as follows:

“Do the Treaty of Peace of Versailles, Part III, Section XI, the Danzig-Polish Treaty concluded at Paris on November 9th, 1920, and the relevant decisions of the Council of the League of Nations and of the High Commissioner, confer upon Poland rights or attributions as regards the access to, or anchorage in, the port and waterways of Danzig of Polish war vessels? If so, what are these rights or attributions?”

It follows from the way in which the question is formulated that

(1) in so far as concerns the *sources of law* to be consulted for the purposes of the Advisory Opinion, two are indicated with some precision, whereas the two others, and particularly the decisions of the Council and of the High Commissioner, are merely described as “relevant”; this makes it incumbent on the Court to decide precisely which are, in its view, relevant, i.e. which have been taken with the object of regulating the matter in question;

(2) with regard to the *substance or constituent elements* of the rights or attributions, the Council's request only defines them

by the words: "as regards the access to or anchorage in the port and waterways of Danzig of Polish war vessels", without specifying more precisely the powers covered by these ideas;

(3) as regards the *actual purpose of the Advisory Opinion which the Court is asked to give*, this is to establish whether the sources of law indicated under (1), or any one of them, confer on Poland, in the connection described under (2), any rights or attributions, and, if so, what rights or attributions?

I.

In view of the connection existing between these three elements, which are in part interdependent, and of the desirability of determining as precisely as possible what appears to me must constitute the *starting point* for the Court's investigations, i.e. the precise meaning of the expression: "access and anchorage for war vessels", it seems to me necessary to consider what positive data are afforded by the documents placed on the Court's record with regard to the substance of the rights or attributions in question.

In what may be called the official terminology, are employed at the outset two expressions, used simultaneously, though with reference to different conceptions, by the Council of the League of Nations: these were "*point d'attache*" with special reference to the vessels allocated to the Polish maritime police, and "*port d'attache*"—a more general term used with reference to war vessels. The distinction ceased to have any importance when the Council of the League of Nations, by its Resolution of June 22nd, 1921, grouped the two problems together. In November 1927, the more general term—the only one which is relevant—was by agreement between Poland and the Free City of Danzig, replaced, for the purposes of subsequent negotiations, by the expression "*access to and anchorage in the port of Danzig for Polish war vessels*". This expression is also used by the Council in its request of September 19th, 1931, save that it has inserted after the word "*port*": "*and waterways*".

This change in terminology did not seem to involve any substantial change in any rights which might exist; the

substance of these rights cannot therefore be better illustrated and defined than by the practice of more than ten years originating with the agreement concluded on October 8th, 1921, between Poland and the Free City, under the auspices of the League of Nations. Now, according to this long followed practice, access and anchorage for Polish war vessels means shelter, mooring, provisioning, repairs, the purchase of various material, etc., operations of which the Polish Government's Agent has given a detailed description in the course of the hearings before the Court and which are all of an administrative kind and economic in their nature and justify the description of the use made of the port of Danzig as an exclusively pacific use, which cannot be confounded with the establishment of a naval base, which is expressly forbidden.

The attention of the Council of the League of Nations was directed to these powers, which constitute the precise import—by no means either vague or indeterminate—of access to and anchorage in the port of Danzig for Polish war vessels. The Council dealt with these questions by means of two distinct procedures on different lines: the first aimed at a provisional *modus vivendi* and the second at a *final settlement*. Both in their respective sphere merit examination from a legal standpoint.

II.

(a) The *provisional settlement* first finds a place in the Polish-Danzig agreement suggested by the President of the Council of the League of Nations on October 1st, 1921, and concluded by the two Parties concerned, before the High Commissioner, on October 8th, 1921. The Council noted this agreement in its *Resolution of January 12th, 1922*, and described it as concluded with the object of "providing safety and the necessary harbour facilities for Polish war vessels"; it also fixed the duration of these powers by deciding that the preliminary agreement should remain in force until the question had been considered by the Council.

The above-mentioned Resolution may therefore be considered, for the purposes of the present proceedings, as a

"*relevant decision*" in so far as it regulates, by approving the agreement between the Parties, the question of access to and anchorage in the port of Danzig for Polish war vessels. By so doing it creates special legal relations taking the form of attributions and obligations accruing to or devolving upon the respective Parties. Thus, by the mutual agreement of Poland and the Free City of Danzig, and by the authority of the Council, a régime was established in 1921 which, though doubtless provisional and subordinate in character, was nevertheless a legal régime the lawfulness of which has not been disputed and which had continued in operation down to the present day.

Under this agreement, Poland is granted "*the use of the port of Danzig*", subject to notifying the President of the Senate of Danzig of the number of ships she wishes to keep in the port. For his part, the President of the Senate undertakes to raise no objection to these ships remaining in the port. Finally, the Harbour Board is to provide the necessary berths. Then follows a clause of style to the effect that the arrangement does not commit either side as regards any future agreement on the subject between the two States, or any decision of the Council.

(b) The provisional settlement was subsequently set out in another *resolution of the Council* and in a *decision of the High Commissioner*—both dated *September 19th, 1931*. This second intervention on the part of the organs of the League of Nations took place in the following circumstances:

When—following upon, firstly, the denunciation of the agreement in 1927 by the Free City and the successive extensions of the agreement in 1928 and 1931 and, secondly, the failure of the negotiations for a new agreement—the two Parties were about to find themselves without any agreement to rely upon, the High Commissioner in a supplementary report, dated August 20th, 1931, drew the Council's attention to the unfortunate consequences likely to ensue from the fresh difference of opinion and stated that he believed he would be rightly interpreting his duties by doing "everything in his power to forestall and prevent such consequences".

The Council, acting on this report, adopted on September 19th, 1931, a resolution to the effect that :

"Pending the Council's final decision on this matter, the High Commissioner is requested to draw up provisional regulations. This arrangement shall in no wise prejudice the final settlement of the question."

In pursuance of this mandate, the High Commissioner on the same date, *September 19th*, 1931, issued a *provisional regulation*. *Formally*, the new regulation—issued by the Council's representative—entirely superseded the agreement concluded on October 8th, 1921, between the Parties. *In substance*, the new régime at present in force retains all the features of the preceding régime, except that a clause is added forbidding the sending ashore of naval patrols, and another providing for arbitration by the High Commissioner in the event of a difference of opinion. With regard to the duration of the régime thus instituted, Poland is to continue to use the port of Danzig, as during these last years, for her war vessels until the question of the access to and anchorage in the port of Danzig has been settled definitively by a decision of the Council of the League of Nations.

The interest residing in an examination of the provisional régime—apart from the fact that this examination is necessary *in law*, since it relates to relevant decisions of the Council and the High Commissioner—consists in the fact that it makes it possible :

(1) to ascertain with the necessary precision, *the nature of the use made of the port* since more than ten years by Polish war vessels ;

(2) to estimate at its true value *the formal insistence of the intervention* of the organs of the League of Nations in this question ;

(3) to observe *the direction of the Council's train of thought*, which is invariably directed towards the maintenance and continuance of the régime without the latter at any time being regarded as an abuse of or contrary to the law in force.

III.

Before describing the Council's activities in regard to a final settlement of this matter, it is absolutely necessary to examine firstly the *legal provisions of a higher order* governing both the *rights* and obligations of the two Parties concerned and the Council's jurisdiction in regard to Polish-Danzig affairs. That brings us once more to the question put by the Council in its request, a question which upon closer analysis runs as follows :

Should the access and anchorage of Polish warships, understood in an administrative, economic and pacific sense and which represent the necessary facilities and security granted to Poland by the provisional regulation, be considered substantially as also forming the subject of rights of a superior order, rights to be respected by Danzig and the Council of the League of Nations? Can they be included among those specially conferred on Poland by the relevant provisions of the Treaty of Versailles?

(a) In the absence of an express provision governing the case in question, and since it is obviously impossible to find a provision dealing with such a very special position, recourse must be had to the very general principles of Section XI, Part III, of the Treaty of Versailles, and, most of all, especially to Article 104, paragraph 2.

This Article confers on Poland without any restriction the free use and service of all waterways, docks, basins, wharves and other works within the territory of the Free City, necessary for Polish imports and exports.

Regard being had to the tenour of this clause together with its terms, a literal interpretation of it seems to me to cover completely the above defined use of the port.

1. The benefit is conferred *on Poland*, on the Polish State as a whole, including its people, its commercial companies, its

Government, in short, on Poland as a legal personality. No distinction is drawn between warships, mercantile vessels, pleasure boats, fishing boats. The words "without any restriction" which follow the word "Poland" show that there was no intention to limit the principle *ratione personæ* by excluding from its application any given category of beneficiaries.

2. Nor was any restriction laid down in regard to the *nature of the use*: "the free use and service" obviously covers the use in question.

3. As regards the *subject matter* of this right of use and service, this is indicated in so many words and includes waterways, docks, basins, wharves, and other works necessary for Polish imports and exports. It has been argued that the concluding words rule out warships. I cannot share this view. In my view there is no ground for extending in this way the meaning of words which define the subject matter of this use and which are intended to withdraw from such use installations not necessary for exports and imports, and to give these words a restrictive effect either in respect of the nature of the use or the special character of the beneficiaries. Nothing in the wording of the principle laid down in Article 104, paragraph 2, allows us to restrict the meaning by adding the words "*for commercial purposes*" or even the words "*of an economic character*", although incidentally the latter expression would in this case cover the activities of Polish warships in the port of Danzig.

If, however, this wording of the text should give rise to any doubt as to its true meaning, so that recourse must be had to an interpretation according to its spirit, the principles underlying Articles 100 to 108 of the Treaty of Versailles would not lead to a different result. Recourse to these principles would certainly not be justified if the object were to draw inferences contrary to the terms of the relevant articles. Clearly such a recourse would be fully justified if, where any doubt exists, these principles threw a light on the text in which they find concrete legal expression. That it seems to me is the import in this case of the principle of free and secure access for Poland along with its corollary, viz.

the intention of the Powers to establish the closest relations between Danzig and Poland. In the light of these principles, Article 104, paragraph 2, can in no circumstances be interpreted restrictively to the detriment of Polish warships.

(b) Understood in this way, Article 104, paragraph 2, is not the *only* provision of which account is to be taken in settling the present case. Section XI, Part III, of the Treaty of Versailles contains other articles which may be relevant, particularly Articles 102 and 103 the object of which is to regulate the territorial integrity and political independence of Danzig, the autonomy of the Danzig people and the security of the Free City. Article 102, which places the Free City under the protection of the League of Nations, appears to me to be specially relevant.

The *connection* which in my view exists between Poland's right to access and anchorage for her warships in Danzig—a right based on Article 104, paragraph 2—on the one hand, and the exercise of the right of protection granted to the League of Nations in Article 102, on the other, *lies in the military character of the vessels* concerned in this case. The existence of this character which, in itself, is insufficient to deprive Poland of the right to obtain the benefit for her warships of the particular advantages conferred by Article 104, paragraph 2, seems, on the contrary, sufficient to authorize the League of Nations to make use of its right of protection in so far as the exercise by Poland of her rights were likely to threaten Danzig's security. In other words, the League of Nations, without denying or destroying Poland's rights under Article 104, paragraph 2, has the power to regulate the exercise of that right and to lay down such necessary conditions as may be adjudged necessary for the security of the Free City.

The military character of vessels—irrelevant to an accurate interpretation of Article 104, paragraph 2—appears, on the contrary, relevant to call into play Article 102 and to fix on the basis of that Article the exact conditions for the application of Article 104, paragraph 2. The two provisions cited, one of which confers certain rights on Poland, and the other

of which, jurisdictional in character, provides the Council of the League of Nations with a legal basis to limit if necessary the exercise—constitutes between them, to my mind, the fundamental legal framework in which the present problem lies.

It is otherwise with the *Convention of Paris*, which cannot be regarded as relevant to the present case. The legal position of Polish warships is outside this Convention in the same way as the question of Danzig's defence by Poland, a question which was expressly placed outside its scope. Moreover, the terms of the Convention neither explicitly nor implicitly weaken the scope of the two relevant articles of the Treaty of Versailles. It is in the light of both these articles taken together that the Council's activities can be legally appraised. This applies both to any provisional action of the Council and to its definitive action. In two different ways such action assumes the character of pure regulation deriving its legal origin from Article 102. Whether the Council acts by itself or whether it has recourse to a friendly settlement between the Parties negotiated under its auspices—the course adopted cannot in any way modify its essential legal position, as that position seems to me to result from the Treaty of Versailles.

IV.

Having examined the Council's work in connection with a provisional settlement, it merely remains for me to make a few observations on its activities in connection with *definitive regulation*.

Begun on October 20th, 1920, suspended on January 12th, 1922, the latter was resumed afresh on September 19th, 1931.

Originally the question of access and anchorage for Polish warships was connected, under the title of "port d'attache", with that of the defence of Danzig by Poland. This was due not only to reasons of a formal character arising from the fact that both matters fall within the jurisdiction of the League of Nations in its capacity of Danzig's protector, but

also because both matters were regarded as coming within the scope of the principle of close relations to be established between both countries. In fact, however, the two problems were distinct, seeing that any mandate for the defence of Danzig contemplated extraordinary circumstances, while the question of access and anchorage (then port d'attache) arose out of Poland's permanent needs.

Dealt with jointly at the session of June 1921, the *Resolution of June 22nd, 1921*, provided different and independent solutions for both questions.

When the Council, after having found it (in *paragraph 6* of its Resolution) unnecessary to take a decision in regard to the defence of Danzig by sea, nevertheless took a definite stand (in *paragraph 7*) in regard to the question of the port d'attache and entrusted the High Commissioner with the task of examining the means of creating a port d'attache in the port of Danzig without establishing there a naval base, the decision thus taken certainly marks a significant step in the gradual development of the efforts towards a settlement. But from a strictly legal standpoint, it is in my view difficult to see in clause 7 (as it is for that matter in all the acts which preceded as well as those which followed it) anything which departs *in one sense or the other* from my conception of a settlement developed above. If this part of the Resolution cannot in my view be regarded as relevant as an original and basic source of Poland's rights, equally it cannot be invoked to question or deny those same rights. Its real significance is that it furnishes evidence of the Council's definite intention to give satisfaction to Poland's demands short of creating a naval base. The reexamination of this question after a lapse of ten years has in my view no other significance.

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To sum up: If I had to reply to the question put by the Council, I would draw the conclusion from the above considerations, as follows:

Rightly interpreted, Article 104, paragraph 2, of the Treaty of Versailles confers on Poland in principle rights in regard to the access and anchorage of Polish warships in the port and waterways of Danzig which are substantially similar to the attributions which were and remain granted to Poland by the relevant decisions of the Council dated January 12th, 1922, and September 19th, 1931, together with the relevant decision of the High Commissioner dated September 19th, 1931.

However, the regulation of the aforementioned rights and attributions, under Article 102 of the Treaty of Versailles, rests with the League of Nations in so far as any given use of the port by Polish warships, authorized in principle by Article 104, paragraph 2, of the Treaty of Versailles, would be likely to threaten the security of Danzig, which is placed under the protection of the League of Nations.

(Signed) M. ROSTWOROWSKI.